AMIDOL SERVICES (PRIVATE) LIMITED
t/a HOUSE OF RAG
versus
ANDREW CHEPIRI

HIGH COURT OF ZIMBABWE
MAWADZE DJP AND WAMAMBO J
HARARE; 11 March 2025 & 18 March 2026

Civil Appeal

P Donzvambeva, for the appellant
NG Bumhira, for the respondent

Introduction

WAMAMBO J: This is an appeal against the dismissal of a special plea raised in the Magistrates' Court proceedings in which the respondent sued to recover a quantified sum awarded to him by a Designated Agent of a National Employment Council.

The dispositive question is not whether the Designated Agent's determination is final (on the record it is), but whether it is presently enforceable through an ordinary civil claim in the Magistrates' Court in the absence of an express statutory enforcement mechanism. The statutory scheme of the Labour Act provides for the registration and enforcement of certain labour dispute outcomes (notably Labour Court decisions and arbitral awards), but it does not provide a comparable mechanism for determinations by Designated Agents.

Applying orthodox principles of statutory interpretation, and the constitutional limits on inherent jurisdiction and common-law development, this Court concludes that it is not permissible to convert the Designated Agent's ruling into an executable civil judgment by judicial innovation. Section 176 of the Constitution confers inherent powers to regulate process and develop the common law, but it is not a power to legislate.

In consequence, the Magistrates' Court lacked power to grant the enforcement relief sought, and the special plea ought to have been upheld. The appeal is therefore granted, the judgment a quo is set aside, and the claim is dismissed as incompetent in its current form.

A short policy note is added to underscore that this outcome exposes an urgent legislative gap: determinations by Designated Agents, though final within the labour dispute-resolution architecture, may be practically ineffectual absent explicit enforcement provisions. Courts may identify the lacuna and explain its consequences, but amendment is presently a matter for Parliament.

Background

Background and Procedural History.

The respondent was employed by the appellant as a Packer (Grade II) in the production department on a series of fixed-term contracts since 2008. In May 2019, the appellant did not renew the respondent's contract. The respondent treated this as an unfair labour practice (an alleged unlawful termination disguised as non-renewal) and lodged a complaint. Pursuant to the Labour Act and the applicable National Employment Council (NEC) procedures, the dispute was referred to a Designated Agent for conciliation and, failing settlement, determination. A Designated Agent is a statutory dispute resolution officer appointed in terms of the Labour Act, section 63, with power to "redress or attempt to redress" disputes within the relevant industry. In this case, the Designated Agent conducted proceedings after conciliation attempts apparently failed.

A determination was indeed made by a Designated Agent and was at some point submitted to the Labour Court for confirmation. However, in a Labour Court ruling (Tarisai Charamba v Amidol Services (Pvt) Ltd t/a House of Rag & Andrew Chepiri LC/H/ORD/596/2020), the matter was remitted back to the Designated Agent on the basis that it was unclear whether the agent had properly attempted conciliation or had immediately "redressed" (determined) the matter. The Designated Agent resumed the process and on 10 March 2021 concluded, inter alia, that the respondent was deemed to be on a contract without limit of time (i.e. a permanent employee) with effect from 1 October 2019. This finding set the stage for quantifying the employee's outstanding entitlements.

On 12 October 2023, after further proceedings, the Designated Agent issued a written ruling in the respondent's favour. She found that the non-renewal of the respondent's contract was indeed unfair and ordered the appellant to pay the respondent a total of USD 25,881.84 or local currency equivalent as compensation. This amount was broken down into US$22,248

in salary arrears and US$3,633.84 in pension contributions due to the respondent. The ruling essentially compensated the respondent for lost income and benefits over the period in question. The appellant, although dissatisfied with the outcome, did not utilize the available avenue to appeal to the Labour Court or to seek review of the Designated Agent's determination. In terms of the Labour Act, a party aggrieved by such a determination can appeal to the Labour Court (see section 93(3), as read with section 89) or apply for review. Here, the employer elected not to do so. Consequently, the Designated Agent's ruling became final and binding on the parties. It definitively resolved the labour dispute on the merits. Nothing remained pending in the labour dispute-resolution fora.

Despite the final ruling, the appellant failed or refused to pay the amounts awarded. The respondent was left with a "paper victory" – a clear adjudication in his favour but no compliance by the employer. Critically, the Labour Act at that time did not provide any explicit mechanism to enforce a Designated Agent's ruling if the losing party does not voluntarily comply. Unlike arbitral awards or Labour Court judgments which can be registered for enforcement in terms of section 98(14) and section 92B of the Act, respectively, a Designated Agent's determination falls into a statutory gap. There is no provision in the Act for registering or directly executing such a ruling. This enforcement gap is the crux of the legal problem in this case.

In January 2024, faced with the appellant's continued non-compliance, the respondent turned to the civil courts for a remedy. He issued summons in the Magistrates' Court (Case No. HRE C-CG 39/24) claiming payment of the sum of US$25,881.84 as awarded by the Designated Agent together with interest and costs on the legal practitioner-client scale. In his particulars of claim, the respondent explicitly averred that the amount was "an amount arising from a ruling by a Designated Agent of the National Employment Council for the Tobacco Industry dated 12th October 2023." In essence, he sued on the debt evidenced by the Designated Agent's final determination.

The appellant entered appearance to defend and promptly raised a special plea and related exceptions challenging the proceedings. The appellant objected that: (1) the Magistrates' Court had no jurisdiction to entertain what was essentially a labour matter, and (2) the claim was res judicata or an abuse of process, given that a competent tribunal (the NEC Designated Agent) had already determined the matter to finality. In the appellant's view, the respondent had no remedy in the Magistrates' Court. The labour dispute had been finalized by the Designated Agent's ruling, and if that ruling could not be directly executed or

formally registered due to lack of statutory authority, then – according to the appellant – it could not be enforced at all in a civil court. Essentially, the employer's position was that the respondent must be left to his fate (a right with no remedy) unless and until the Labour Act is amended to provide a method of enforcement.

After hearing arguments, the Magistrates' Court (per N. Marufu, Esq.) dismissed the special plea and allowed the matter to proceed on the merits. In a written judgment, the magistrate held that the court did have jurisdiction because once the Designated Agent had resolved the dispute, what remained was simply a debt due to the employee, enforceable like any other civil debt. She observed that it was common cause the agent's ruling had not been appealed and thus the employer was liable to pay the amount determined. The magistrate rejected the contention that the case was still a "labour dispute" or that the court was improperly "re-opening" an already finalized matter. Instead, she characterized the claim as one based on an acknowledged obligation. In her analysis, "the matter was already heard by the designated agent hence it is no longer a labour issue since the [plaintiff] is now armed with an instrument of debt". In other words, the nature of the case before her was enforcement of a debt, not relitigation of a labour dispute.

The court *a quo's* reasoning is supported by higher court decisions addressing analogous scenarios. Notably, the Supreme Court's decision in *CFI Holdings (Pvt) Ltd* v *Machaya* SC 37/23 when considering the question of jurisdiction. In Machaya (a case dealing with the registration of an arbitral award for enforcement), the Supreme Court held that when a court registers an arbitral award, it is not purporting to determine the merits of the dispute – the merits remain within the province of the arbitrator. By analogy, the magistrate reasoned that adopting or enforcing the Designated Agent's ruling as a court judgment did not involve revisiting the merits of the labour dispute; it merely gave formal effect to an outcome already decided elsewhere. She noted that the respondent was not asking the civil court to decide afresh whether an unfair labour practice had occurred – that had already been conclusively decided by the agent. Rather, the respondent was asking the court to enforce an existing obligation. The magistrate thus viewed the proceedings as akin to an enforcement action (comparable, say, to suing on a notarized acknowledgment of debt or foreign judgment) rather than a rehearing of the labour matter. In the end, the magistrate dismissed the special plea with costs.

The appellant, aggrieved by that outcome, then noted the present appeal to the High Court. It is worth observing that by the time this appeal was lodged, the law had slightly evolved but without addressing the core gap at issue. The Labour Amendment Act No. 11 of 2023 (which came into effect in late July 2023) had introduced a new provision – section 93(2) of the Labour Act – allowing for the registration and enforcement of a "certificate of settlement" issued by a labour officer or designated agent where a dispute is settled by conciliation. However, significantly, no provision was made for enforcement of a determination imposed by a labour officer or designated agent after a failed conciliation. In other words, the legislative lacuna identified above – the absence of a prescribed mechanism to enforce a Designated Agent's ruling that has not been complied with – remained intact. This legislative context forms part of the backdrop to the legal arguments on appeal.

Grounds of Appeal

The appellant's grounds of appeal are two-fold and were set out as follows in the Notice of Appeal:

> "The court *a quo* erred at law in finding that it had jurisdiction to enforce determinations made by Designated Agents in terms of the Labour Act [*Chapter 28:01*] in circumstances where the law confers no such powers upon it."
>
> "The court *a quo* erred at law in finding that the matter was not res judicata in circumstances where another competent tribunal had determined the matter to finality."

The appellant's notice also indicated that the relief sought was the upholding of the special plea and dismissal of the claim with costs on a higher scale.
It will be observed that these two grounds distil the key legal issues in this appeal:

whether the Magistrates' Court had jurisdiction to entertain and enforce the Designated Agent's determination despite the Labour Act's silence, and

(ii) whether the respondent's claim was barred by the doctrine of res judicata because the dispute had already been decided to finality by another tribunal.

We will address each ground in turn, although, as will be seen, the questions are interrelated. Ultimately, both grounds hinge on the fundamental inquiry of whether a Designated Agent's ruling can give rise to an enforceable cause of action in the civil courts.

Issues

The appeal raises four principal issues:

First, whether the Magistrates' Court had power (jurisdiction in the substantive sense of competence) to entertain a claim whose immediate foundation is a Designated Agent's labour determination, in light of the exclusivity clause directing certain matters to the Labour Court and the architecture of labour dispute resolution under the Labour Act.

Second, whether and on what doctrinal basis a Designated Agent's determination can be treated as a "liquid document" or debt-creating instrument enforceable by ordinary civil action, where the statute does not expressly equate it to a civil judgment or provide for registration/execution.

Third, whether section 176 of the Constitution permits this Court (or any superior court) to fill the enforcement gap by developing the common law so as to create an enforceability route that the Legislature did not provide, consistently with separation of powers and the limits of inherent jurisdiction.

Fourth, if necessary, to decide, whether the claim is barred by res judicata/finality doctrines, given the prior determination by the Designated Agent and the prior Labour Court remittal referred to in the Background.

Analysis

Statutory architecture and what it expressly makes enforceable.

The Labour Act establishes employment councils, and provides for the appointment of Designated Agents (s 63) with defined powers, including powers related to dispute redress within the industry.

Separate provisions stipulate how certain outcomes of labour dispute resolution become enforceable in the ordinary courts:

Decisions, orders, or determinations of the Labour Court may be registered in a Magistrates' Court (or in the High Court if beyond magistrates' jurisdiction), and once registered, have the effect "for purposes of enforcement" of a civil judgment.

Arbitral awards under section 98 carry a similar registration mechanism: the award may be submitted for registration in the Magistrates' Court (or High Court, if beyond jurisdiction), and thereafter has the effect of a civil judgment for enforcement purposes.

In 2023, Parliament amended section 93 to provide that where a dispute is settled by conciliation, the settlement is recorded in writing, is registrable "with the relevant court for enforcement upon default," and the certificate of settlement "shall have the effect… of a civil judgment of the appropriate court."

These provisions matter not because they directly govern Designated Agent determinations, but because they show that when Parliament intends a labour-related instrument to be enforced through ordinary civil execution processes, it says so plainly and provides a procedure for registration and enforcement.

Against that background, the absence of a comparable enforcement clause for Designated Agent determinations is not a mere drafting curiosity. It is a structural omission in a statute that otherwise demonstrates a clear legislative technique for converting specified labour outcomes into enforceable civil judgments.

Statutory interpretation and the limits of "implied enforceability"

The respondent's strategy in the Magistrates' Court (understandably prompted by non-compliance) was to treat the Designated Agent's determination as a debt instrument and sue on it as though it were equivalent to a liquid civil obligation.

However, the statute's express enforcement pathways—Labour Court decisions (s 92B), arbitral awards (s 98), and certificates of settlement (s 93(2) as amended)—invite a disciplined interpretive approach. The interpretive canon commonly described as *expressio unius est exclusio alterius* is not a rigid rule, but it is a relevant aid where legislation specifies a set of things in a context that suggests completeness. Here, the legislative pattern is: when an instrument is meant to be enforceable as a civil judgment, the statute provides a registration step and states the judgment effect for enforcement.

If courts were to treat Designated Agent determinations as enforceable through ordinary civil debt proceedings without statutory authority, the effect would be to create, indirectly, the very enforcement mechanism that Parliament has not enacted—thereby collapsing the distinction Parliament itself has drawn between instruments it expressly renders enforceable and those it does not.

Equally, the 2023 amendment to section 93 demonstrates that Parliament has recently and specifically addressed enforceability in the dispute-resolution space, but did so only for conciliated settlements (certificates of settlement) and did not extend the "effect of a civil judgment" language to determinations after failed conciliation. The Court cannot assume that

Parliament's specific extension in one context silently warrants a judicial extension to another.

Inherent jurisdiction, separation of powers.

Section 176 of the Constitution provides that the Constitutional Court, Supreme Court, and High Court have inherent power to protect and regulate their own process and to develop the common law (and customary law), taking into account the interests of justice and the Constitution.

Yet "inherent power" is not an enabling clause for courts to invent new substantive rights or obligations, or to create wholly new enforcement regimes where Parliament has legislated a detailed scheme and omitted a particular mechanism. This is not merely a theoretical separation-of-powers concern; it goes to legality and democratic accountability in the creation of coercive state power (execution against property, attachment, contempt consequences, and the like), which is quintessentially governed by statute.

The High Court's decision in *Zimbabwe Rural Districts Council Workers Union* v *Nyanga Rural District Council and 2 Others* (HH 118/22) is particularly instructive on the limits of inherent jurisdiction. It expressly cautions that section 176 does not authorize "the power to invent new laws" and that inherent jurisdiction "is not a power to legislate."

Nyanga also cites the UK Supreme Court's decision in *Al Rawi* v *The Security Service* as an illustration of judicial restraint where introducing a new procedural/structural mechanism would properly be left to Parliament.

The point is reinforced by the South African Constitutional Court in Phillips and Others v National Director of Public Prosecutions, which emphasizes that inherent power to regulate process must be exercised sparingly, and that it is not permissible to side-step an Act of Parliament by resorting to the common law.

Taken together, these authorities yield the controlling principle for present purposes: courts may regulate their process and develop the common law incrementally, but they may not create an enforcement mechanism that effectively amends a statute by adding an omitted enforceability pathway, especially where the statute elsewhere shows how enforceability is to be conferred and regulated.

The "liquid document" proposition and how Nyanga must be read.

The court *a quo* proceeded on the premise that the respondent was "armed with an instrument of debt."

Nyanga contains a passage stating that determinations by designated agents "can form the basis of proceedings for judgments… much the same as liquid documents are."

But Nyanga must be read as a whole. In the same paragraph, the court concludes that, on a proper analysis of inherent jurisdiction, it would be inappropriate to extend the court's power to cover the applications, and it dismisses them.

Accordingly, Nyanga does not stand as authority that determinations are enforceable as civil judgments (or registrable for execution) in the absence of legislation. At most, it indicates that a litigant is "not without a remedy," while simultaneously declining to craft a remedy by extending inherent jurisdiction.

Any broader enforceability implication drawn from the "liquid document" phrasing are obiter and not as a definitive legislative substitute. This Court agrees: to elevate that phrase into a general judicial enforcement regime would contradict Nyanga's central holding that courts should not extend inherent jurisdiction to "invent new laws" and should, where appropriate, defer to Parliament.

Jurisdiction and competence of the Magistrates' Court in the present matter.

It is important to clarify the sense in which we speak of "jurisdiction" here. Section 89(6) provides that no court other than the Labour Court shall have jurisdiction in the first instance to hear and determine any "application, appeal or matter" referred to in subsection (1).

The respondent submits and the court a quo accepted that once merits are determined by the Designated Agent and no appeal is noted, what remains is merely enforcement, which can be treated as an ordinary civil debt claim.

The difficulty is that the enforcement relief sought is not simply a common-law debt claim arising from contract, delict, or unjust enrichment; it is a request that the Magistrates' Court give executable effect to a statutory determination as such, in circumstances where the statute that created the tribunal and the determination does not provide for such enforceability. A court's competence to issue execution-worthy relief is not a free-floating attribute; it is grounded in substantive and procedural law, and in the statutory scheme applicable to the instrument relied upon.

Where Parliament has expressly provided for registration and enforcement (Labour Court decisions; arbitral awards; conciliation settlements), the Magistrates' Court's role is activated by statute.

Where Parliament has not done so (Designated Agent determinations), the Magistrates' Court cannot supply that missing statutory trigger by treating the determination as if it were an acknowledgment of debt or a judgment. Doing so would not merely "enforce" the consequence; it would convert a statutory administrative/quasi-judicial outcome into a civil judgment by a route the Legislature has not enacted. That is precisely the sort of step that Nyanga and Phillips caution against.

Therefore, the special plea should have succeeded on the basis that the claim, as framed, seeks relief the Magistrates' Court is not empowered to grant under the current statutory scheme.

Res judicata and finality

Given the conclusion on enforceability/competence, it is not strictly necessary to decide the second ground on res judicata, and we refrain from laying down unnecessarily broad doctrine on the status of administrative tribunal determinations for res judicata purposes.

Two limited observations suffice.

First, the Designated Agent's determination is final within the labour dispute-resolution chain in the sense described in the record, absent appeal or review. Finality of determination, however, is conceptually distinct from enforceability through civil execution processes.

Second, to the extent the special plea sought to treat enforcement proceedings as barred simply because the merits were already determined, that reasoning is better captured as an argument about competence and remedy—i.e., the absence of a lawful enforcement pathway—rather than strict res judicata. That is the ground on which this appeal succeeds.

Conclusion and Orders

For the reasons above, the appeal succeeds.

In the result, the Court makes the following order:

The appeal be and is hereby allowed.

The judgment of the Magistrates' Court dismissing the special plea is hereby set aside.

In substitution therefor, the following order is granted:

The appellant's special plea is upheld.

The respondent's claim in the Magistrates' Court under Case No. HRE C-CG 39/24, seeking enforcement of the Designated Agent's determination as a civil debt, is dismissed as incompetent for want of a lawful enforcement mechanism under the current statutory scheme.

There shall be no order as to costs in the court a quo and no order as to costs on appeal, this matter having raised a genuine and recurring question of public importance arising from a legislative lacuna identified in the statutory scheme.

WAMAMBO J: ……

MAWADZE DJP: ……agrees

Gill, Godlonton & Gerrans, appellant's legal practitioners
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